

美国《出口管理条例》（EAR）核心条款汇编

与长江存储（YMTC）实体清单案例相关部分

15 C.F.R. §§ 730–774 美国商务部工业与安全局（BIS）
整理编号：Part 734（域外管辖：最低含量规则 / 外国直接产品规则）
Part 744 § 744.16（实体清单法律依据）

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说明：本汇编为便于研究引用而整理，条文原文为英文法律文本，按官方 Interactive EAR 网站现行版本摘录，未作任何实质性改写；每节后附中文导读，帮助定位与长江存储案例的对应关系。官方唯一权威版本以 eCFR (www.ecfr.gov) 为准。

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一、Part 734 — Scope of the Export Administration Regulations

【中文导读】Part 734 是判断"物项/技术是否受EAR管辖"的起点条款。论文中反复出现的"产品受EAR管辖"这一判断，其法律依据主要来自本部分的§734.3（管辖范围）、§734.4（最低含量规则/de minimis）与§734.9（外国直接产品规则/FDPR）。

§ 734.3 Items subject to the EAR

(a) Except for items excluded in paragraph (b) of this section, the following items are subject to the EAR: (1) All items in the United States, including in a U.S. Foreign Trade Zone or moving in transit through the United States from one foreign country to another; (2) All U.S. origin items wherever located; (3) Foreign-made commodities that incorporate controlled U.S.-origin commodities, foreign-made commodities that are 'bundled' with controlled U.S.-origin software, foreign-made software that is commingled with controlled U.S.-origin software, and foreign-made technology that is commingled with controlled U.S.-origin technology: (i) In any quantity, as described in Section 734.4(a) of this part; or (ii) In quantities exceeding the de minimis levels, as described in Section 734.4(c) or Section 734.4(d) of this part; (4) Certain foreign-produced "direct products" of specified "technology" and "software," as described in Section 734.9 of the EAR; and (5) Certain foreign-produced products of a complete plant or any major component of a plant that is a "direct product" of specified "technology" or "software" as described in Section 734.9 of the EAR.

(b) The following are not subject to the EAR: (1) Items exclusively controlled for export or reexport by other U.S. departments/agencies (e.g., State Department ITAR, OFAC, NRC, DOE, PTO, DoD Foreign Military Sales); (2) Certain printed publications and prerecorded materials; (3) Information and "software" that are published, arise from fundamental research, are released through academic instruction, appear in patents, are non-proprietary system descriptions, or are telemetry data as defined in the CCL. (c) "Items subject to the EAR" consist of items listed on the Commerce Control List (CCL) in part 774 of the EAR and all other items meeting the definition; items not on the CCL are designated "EAR99."

来源：15 CFR Section 734.3；bis.gov/regulations/ear/734 (Interactive EAR)

§ 734.4 De minimis U.S. content（最低含量规则）

【中文导读】这是论文中提到的"最低含量规则"（对中国通常适用25%美国成分门槛）的直接法律出处。含义：外国制造的产品若含有超过规定比例的受管制美国原产成分，即被纳入EAR管辖范围，须遵守美国出口许可要求。

(a) Items for which there is no de minimis level. There is no de minimis level for certain high-performance computers containing controlled U.S.-origin semiconductors destined to Computer Tier 3 destinations or to Cuba, Iran, North Korea and Syria; for foreign-produced encryption technology incorporating U.S.-origin encryption technology (ECCN 5E002); for semiconductor manufacturing equipment items destined for the development or production of "advanced-node integrated circuits"; for certain 9x515 and "600 series" items destined to Country Group D:5, E:1, E:2, Belarus, China (for .y items) or Russia; and for certain items related to the SME FDP rule and the Footnote 5 FDP rule when destined to Macau or Country Group D:5 (which includes China).

(c) 10% De Minimis Rule. Reexports of a foreign-made commodity incorporating controlled U.S.-origin commodities, or 'bundled' with U.S.-origin software, valued at 10% or less of the total value of the foreign-made commodity - and analogous rules for software and technology - are not subject to the EAR when made to any country in the world (subject to exceptions in paragraphs (a) and (b)).

(d) 25% De Minimis Rule. The same 10%-rule logic applies at a 25% threshold for reexports to countries other than those listed in Country Group E:1 or E:2 (the most heavily embargoed destinations). This is the general 25% threshold applicable to most reexports to China referenced in the literature as "the 25% rule."

(e)-(g) You are responsible for calculating whether the de minimis provisions apply, following the valuation guidance in Supplement No. 2 to Part 734, and must retain documentation of your calculation method in accordance with the recordkeeping requirements of Part 762 of the EAR.

来源：15 CFR Section 734.4；[bis.gov/regulations/ear/734](https://www.bis.gov/regulations/ear/734) (Interactive EAR)

§ 734.9 Foreign-Direct Product (FDP) Rules (外国直接产品规则)

【中文导读】这是论文里"外国直接产品规则/FDPR"的完整法律条文出处，也是美国出口管制实现"域外管辖"（即使产品在境外生产、不含任何美国零部件，只要使用了受管制的美国技术或软件生产，仍受EAR管辖）的核心机制。其中(e)款"实体清单FDP规则"直接对应长江存储被列入实体清单后触发的域外管辖效果，包含对被列实体的直接或间接50%以上控股关联方同样适用的规则（即所谓"关联方穿透"条款）。

Introduction. Foreign-produced items located outside the United States are subject to the EAR when they are a "direct product" of specified "technology" or "software," produced by a complete plant or 'major component' of a plant that itself is a "direct product" of specified "technology" or "software," or, for specified foreign-produced items, contain an item produced by such a plant or major component. If a foreign-produced item is subject to the EAR, license requirements must be separately determined based on item classification, destination, end-use, and end-user.

(b) National Security FDP rule. A foreign-produced item is subject to the EAR if it meets both the product scope (it is the "direct product" of U.S.-origin technology or software that requires a written assurance as a supporting document for a license, or is produced by a plant/major component that is itself such a direct product, and is subject to national security controls under the applicable CCL entry) and the country scope (destination listed in Country Group D:1, E:1, or E:2).

(e) Entity List FDP rules. A foreign-produced item is subject to the EAR if it meets the product scope and end-user scope in either the Footnote 1, Footnote 4, or Footnote 5 provision of the Entity List FDP rules. Consistent with the introductory text to the Entity List (Supplement No. 4 to Part 744), the end-user scope of these rules also includes any foreign entity that is owned, directly or indirectly, individually or in aggregate, 50 percent or more by one or more listed entities - i.e., the ownership 'look-through' rule applies even when only one of multiple owners meets the end-user criteria.

(e)(1) Footnote 1: a foreign-produced item is subject to the EAR if it is a "direct product" of technology/software specified in enumerated semiconductor-related ECCNs (3D001, 3E001, 4D001, 5D001, etc.) AND there is "knowledge" that the item will be incorporated into, or used in production/development of, any part, component or equipment produced/purchased/ordered by a Footnote-1 designated Entity List entity, or that such an entity is a party to the transaction.

(e)(2) Footnote 4: substantially the same structure as Footnote 1, with an expanded ECCN product list (adding 5D002/5E002 encryption-related categories) and applying to entities carrying a Footnote-4 designation on the Entity List.

(e)(3) Footnote 5 and "advanced-node integrated circuit" production: applies to foreign-produced semiconductor manufacturing equipment commodities (ECCN 3B001/3B002/3B903/3B991-994 series) that are direct products of, or produced by a plant that is a direct product of, specified U.S. technology/software, where there is knowledge the commodity will be incorporated into equipment produced/purchased/ordered by a Footnote-5 entity, or by an entity located at a facility in Macau or Country Group D:5 (which includes China) engaged in the production of advanced-node logic or DRAM integrated circuits.

(f)-(l) 其余条款（略，仅存要点）：分别规定俄罗斯/白俄罗斯/克里米亚相关FDP规则、俄白军事最终用户FDP规则、先进计算FDP规则、超级计算机FDP规则、伊朗FDP规则、半导体制造设备（SME）FDP规则，以及AI模型权重FDP规则。这些条款分别对应不同的目的地/最终用户/最终用途情形，与长江存储案例关联度较低，如需引用可在 bis.gov/regulations/ear/734 页面查阅对应段落原文。

来源：15 CFR Section 734.9；bis.gov/regulations/ear/734（Interactive EAR，现行版本）

二、Part 744 — Control Policy: End-User and End-Use Based

【中文导读】Part 744 是"最终用户/最终用途型管制"的主体部分，实体清单（Entity List）即规定于本部分Section 744.16，具体名录载于 Supplement No. 4 to Part 744。长江存储于2022年12月15日（12月16日生效）被列入该清单，是论文中核心制度约束"实体清单"的直接法律落点。

§ 744.16 Entity List

The Entity List (supplement no. 4 to this part) identifies persons or addresses of persons reasonably believed to be involved, or to pose a significant risk of being or becoming involved, in activities contrary to the national security or foreign policy interests of the United States. The entries are added to the Entity List pursuant to sections of part 744 (Control Policy: End-User and End-Use Based) and part 746 (Embargoes and Other Special Controls) of the EAR.

(a) License requirements. In addition to the license requirements for items specified on the CCL, you may not, without a license from BIS, export, reexport, or transfer (in-country) any items included in the License Requirement column of an entry on the Entity List when an entity associated with that entry, or any entity using an address of high diversion risk associated with that entry, is a party to a transaction as described in Section 748.5(c) through (f) of the EAR. The specific license requirement for each listed entity or high-diversion-risk address is identified in the license requirement column on the Entity List.

(b) License exceptions. No license exceptions are available for exports, reexports or transfers (in-country) to listed entities or high-diversion-risk addresses, except limited exceptions for civil-aviation-safety items destined to listed Indian or Pakistani entities, and for entities added pursuant to Section 744.20, to the extent specified on the Entity List.

(c) License review policy. The license review policy for each listed entity or high-diversion-risk address is identified in the License Review Policy column on the Entity List. (This is the provision under which BIS applies a "presumption of denial" review policy to most PRC semiconductor-sector entries, including the entry for Yangtze Memory Technologies Co., Ltd.)

(d) The End-User Review Committee (ERC). The ERC, composed of representatives of the Departments of Commerce (Chair), State, Defense, Energy and, where appropriate, the Treasury, generally makes decisions regarding additions to, removals from, or other modifications to the Entity List.

(e) Removal or modification requests. Any entity listed on the Entity List may request that its listing be removed or modified. Any foreign entity that is owned, directly or indirectly, individually or in aggregate, 50 percent or more by one or more entities listed on the Entity List, or by entities subject to Entity List license requirements or restrictions based upon their ownership, may request that its Entity List owner's entry listing be modified to exclude the requester. All such requests, including reasons therefor, must be in writing and sent to the Chair, End-User Review Committee, Bureau of Industry and Security, U.S. Department of Commerce, 14th Street and Pennsylvania Avenue NW, Room 3886, Washington, DC 20230. The ERC reviews such requests per Supplement No. 5 to this part; the Deputy Assistant Secretary for Export Administration conveys the decision in writing, which constitutes final agency action.

(f) Addresses that present a high diversion risk. In limited circumstances, BIS may determine that an address presents a high risk of diversion and publish that address on the Entity List without an associated entity name; license requirements then apply to all entities using that address.

来源：15 CFR Section 744.16 ; law.cornell.edu/cfr/text/15/744.16 (e-CFR现行文本)

三、背景说明：长江存储（YMTC）列入实体清单简况

根据公开报道整理（非法律条文本身，仅作参考，具体以BIS官方联邦公报文本为准）：

美国商务部工业与安全局（BIS）于2022年12月15日发布规则，将长江存储（Yangtze Memory Technologies Co., Ltd., YMTC）及其日本子公司连同其他三十余家中国实体一并列入实体清单，该规则于12月16日生效。此前，长江存储已于2022年10月被列入BIS的“未经验证名单”（Unverified List, UVL）；按照BIS当时新出台的政策，若企业未能在60天内配合完成最终用户核查，即可能被从UVL转列入约束力更强的实体清单。BIS方面表示，列入清单的部分企业涉嫌协助中国军事现代化，或存在将受管制美国物项转运给已被列入实体清单的其他实体（如华为、海康威视关联方）的风险；被列入实体清单后，包括半导体生产设备、电子设计自动化（EDA）软件在内的相关出口、再出口及境内转让均需事先取得BIS许可，且审查政策通常适用“推定拒绝”（presumption of denial）。

长江存储方面在2025年的行政程序文件中曾提出异议，主张相关列入决定所依据的信息不准确，并质疑“最终用户审查委员会”（ERC）在表决程序上的规范性；截至本汇编整理之时，长江存储仍在实体清单之中。以上背景信息均来自媒体公开报道，用于帮助理解条文的实际适用情形，不构成对具体案件事实的法律认定，请以BIS官方联邦公报（Federal Register）原文及Entity List官方页面为准。

参考信源：Export Compliance Daily (2022-12-15/16, 2025-09-22)；Bloomberg via Data Center Knowledge (2022-12-14)；The Register (2022-12-16)；Asia Times (2022-12)；Thompson Hine Smart Trade Blog。

四、检索与引用提示

1. 官方权威版本：条文应以美国联邦法规电子版 eCFR (www.ecfr.gov, Title 15, Chapter VII, Subchapter C) 为准；本汇编所摘录的是BIS官方"Interactive EAR"网站 (bis.gov/regulations/ear) 呈现的现行文本，二者内容应一致，但更新时间点可能有细微差异。
2. 实体清单具体条目（如长江存储的许可要求、审查政策原文）请查询：bis.gov/entity-list，或直接检索联邦公报 (Federal Register) 2022年12月15/16日发布的最终规则原文，以获取该条目的逐字法律文本（本汇编未逐字引用该条目原文，因该清单条目会随时间被修订）。
3. 条文具有动态性：实体清单几乎每月都有增补/移除，Part 734、Part 744 的具体条款编号与措辞也会随BIS新规不断调整（例如"Footnote 5" "SME FDP规则"等均为2023年后新增）。做正式引用或论文脚注时，建议注明访问日期，并在必要时对照访问当天的eCFR版本。
4. 本汇编不构成法律意见，仅供学术研究参考。